

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DJUNA BABIERA REILLY,

Petitioner

VS.

BRENDAN CLIFFORD REILLY,

Respondent

) Case Number: FDI-21-795069

) Hearing Date: May 26, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear via Zoom or in person at 11AM on 5/26/2026 in Department 404.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Djuna Babiera Reilly (Mother) and Respondent Brendan Clifford Reilly (Father) share twin minor children, Esperanza Babiera Reilly (DOB 6/1/2018, age 7), and Julieta Babiera Reilly (DOB 6/1/2018, age 7).
- 2) On 6/17/2021, Mother filed a Petition for Legal Separation. On 5/4/2022, a Stipulation and Order was filed in which the parties agreed to share joint legal and joint physical custody of the minor children, with a 50/50 parenting schedule. On 3/2/2023, a Judgment of Legal Separation was entered, with the 5/4/2022 Stipulation and Order becoming a part of the Judgment.
- 3) On 9/8/25, Mother filed a request for change in custody, seeking an order appointing her as the primary educational decision maker “due to disagreements between me and Father regarding what’s best for the girls.” Based on a review of the parties’ pleadings and exhibits that were filed

1 and lodged with the Court, sworn testimony from the parties, and argument from counsel, the
2 Court found it was in the children's best interests for the parties to continue sharing legal custody.
3 The Court ordered the parties to enroll in coparenting counseling and to attend at least 5 sessions
4 to address the children's school and Individualized Education Programs (IEPs), with the costs to
5 be split equally between them. The Court set a review hearing for 5/26/2026 at 9AM in
6 Department 404 and ordered the parties to file and serve update declaration by 5/15/2026.

- 7 4) Both parties filed update declarations on 5/15/2026. Mother asks for an order requiring the parties
8 to apply for financial aid at Charles Armstrong School, "a leading Bay Area school specializing
9 in teaching students with language-based learning differences, such as dyslexia; and that the
10 Court order the parties to cooperate with any application-related requirements from Charles
11 Armstrong, such as 'shadow day.' " She asks that a review hearing be set for August on school
12 choice. She states that since the last hearing, the parties have jointly decided to remove the
13 children from the Spanish Immersion Program at the current school, Daniel Webster Elementary
14 School, to place them in the General Education Program at the same school, to have the children
15 attend Charles Armstrong School's summer program, and to hire an "education lawyer to seek
16 compensatory services from the SFUSD for their lack of compliance with the girls' IEPs." She
17 sets forth the reasons she believes Charles Armstrong School is a good option for the children.
18 Father states that the parties were coparenting reasonably well until August 2025, when Mother
19 "suddenly proposed sweeping, sudden changes to our daughters' educational landscape due to our
20 daughters' reading and writing challenges." Father states the children love their community at
21 their current school and opposes Mother's proposal to move the children to Charles Armstrong
22 School, which is located in Belmont. "Additionally, with the recent hiring of RSP teacher Ms.
23 Garcia . . . there is no argument here that our children are not receiving the appropriate education,
24 or that SFUSD is ill-equipped to navigate the complexities of providing support for children with
25 diverse learning differences like our daughters have." He states he takes issue with Mother's
26 "major flip-flop" from her contention last December that she was no longer considering Charles
27 Armstrong School, to her current position, which he states "would create immense imposition,
28 and parenting time interference on a large scale for dad," which will cause the children to "lose
29

1 considerable amounts of quality-specific time with both parents, and certainly experience more
2 loss of time with dad considering his contract-specific educator workplace requirements.”

3 **B. Findings and Orders**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 children is the United States.

8 2) **The parties are ordered to appear in person or via Zoom video at 11AM on 5/26/2026 in**
9 **Department 404.**